

19STCV05324 19STCV05324

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-07-17

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Case Number: 19STCV05324 Hearing Date: July 17, 2026 Dept: 406

CENTRAVEL, INC.,

Plaintiff,

v.

FERDINAND LIPANA, et

al.,

Defendants.

Case No.: 19STCV05324

Hearing Date: July 17, 2026

[TENTATIVE]

order RE:

defendants' motion for preliminary

injunction

BACKGROUND

On February 15, 2019, Plaintiff

Centravel, Inc. filed this action against Ferdinand Lipana, Bernadine Lipana,

Lawrence Lipana, Lancelle Lipana, and Sandrine Lipana. Lawrence, Lancelle, and

Sadrine Lipana were subsequently dismissed from the lawsuit.

On June 23, 2026, Defendants filed the instant motion for preliminary injunction. Plaintiff filed an opposition on July 6, 2026. Defendants filed a reply on July 9, 2026.

LEGAL STANDARD

“The general purpose of a preliminary injunction is to preserve the status quo pending a determination on the merits of the action.” (Jamison v. Department of Transportation (2016) 4 Cal.App.5th 356, 361.) A trial court deciding whether to issue an injunction weighs two interrelated factors—the likelihood the moving party will prevail on the merits at trial and the relative balance of interim harms that are likely to result from the granting or denial of preliminary injunctive relief. (White v. Davis (2003) 30 Cal.4th 528, 554; Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286.) “Generally, the ruling on an application for a preliminary injunction rests in the sound discretion of the trial court.” (Cohen, supra, 40 Cal.3d at p. 286.)

DISCUSSION

I.

Preliminary Injunction is Inapplicable

As a threshold matter, the purpose of a preliminary injunction is to preserve the status quo pending resolution of the merits of an action. In this case, there is no basis for a preliminary injunction because judgment has already been entered. The test for a preliminary injunction is inapplicable to the present situation. For example, there is no point in analyzing whether Defendants are likely to prevail on the merits, because Defendants have already lost.

II.

The Issue is Moot

Moreover, Plaintiff has assigned its interest in the judgment to its parent company, Hispanic Express, Inc. (Ponce-Gomez Decl., Ex. 9, 10.) Therefore, Defendants' arguments regarding Plaintiff's standing are moot.

III.

Defendants Have No Probability of Prevailing

Even if the Court were to apply the test for preliminary injunction, Defendants would have no probability of prevailing. The Court has stated multiple times that Plaintiff retains standing to pursue the action and enforce judgment despite being dissolved. The law is clear that “[a] corporation which is dissolved nevertheless continues to exist for the purpose of winding up its affairs, prosecuting and defending actions by or against it and enabling it to collect and discharge obligations, dispose of and convey its property and collect and divide its assets, but not for the purpose of continuing business except so far as necessary for the winding up thereof.” (Corp. Code, § 2010(a).)

Defendants cite no authority abrogating this principle. First, Defendants cite to Civil Code section 2355(b), which provides that an agency is terminated upon “[t]he extinction of its subject.” Defendants argue that because Plaintiff is a dissolved corporation, there is no valid agency relationship between Plaintiff and its counsel, Eanet PC. However, to the extent agency principles apply, Plaintiff would be the principal, not the subject. The subject of the agency relationship—legal representation—continues to exist and has not been extinguished under section 2355(b). Section 2355 does not state that an agency is terminated upon dissolution of the principal, nor does it otherwise abrogate Corporations Code section 2010(a).

Second, Defendants argue that Eanet PC is “entirely clientless” under Corporations Code section 2001. (Opp. at pp. 3-4.) Section 2001 sets forth “[t]he powers and duties of the directors (or other persons appointed by the court pursuant to Section 1805) and officers after commencement of a dissolution proceeding.” The statute does not govern agency relationships, does not abrogate section 2010(a), and does not preclude attorneys from representing a dissolved corporation in a civil action. Thus, the statute is inapposite. Defendants cite no evidence for their accusation that Eanet PC is “act[ing] as its own principal to expand collection tracks to fund private firm operating accounts.” (Opp. at p. 4.) It is routine for a law firm to receive money owed to its client who is a judgment creditor and then distribute the funds to the client.

Lastly, Defendants cite *Limon v. Circle K Stores Inc.* (2022) 84 Cal.App.5th 671 for the proposition that “a

party completely lacks standing in California courts if they do not hold an active, current beneficial interest under substantive law.” (Opp. at p. 4.) The court in Limon reiterated the undisputed rule that “[t]o have standing, a party must be beneficially interested in the controversy; that is, he or she must have ‘some special interest to be served or some particular right to be preserved or protected over and above the interest held in common with the public at large.’” (Limon, supra, 84 Cal.App.5th at p. 697.)

Under Limon, Centravel is the real party in interest in this case. Ferdinand embezzled millions of dollars from Centravel, and Centravel sued to recover it. This makes Centravel “beneficially interested in the controversy.” (See Limon, supra, 84 Cal.App.5th at p. 697.) Centravel, as the victim of the theft, holds a “special interest . . . over and above the interest held in common with the public at large.” (Ibid.) Thus, Centravel has standing under Limon. That case does not abrogate Corporations Code section 2010(a) or otherwise suggest that a dissolved corporation loses standing to enforce a judgment.

In sum, each argument made in the motion is meritless. Defendants raise additional arguments and law in the reply, which the Court is not required to consider. (See Tellez v. Rich Voss Trucking, Inc. (2015) 240 Cal.App.4th 1052, 1066.) In any event, none of the new authorities raised in the reply abrogates Corporations Code section 2010(a) or the principle that a dissolved corporation continues to exist for purposes of enforcing its debts. (See Corp. Code, §§ 1900-1905; Catalina Investments, Inc. v. Jones (2002) 98 Cal.App.4th 1.)

CONCLUSION

Defendants’ motion for preliminary injunction is DENIED.